

ATLAS UNION CONTRACT

COLLECTIVE BARGAINING AGREEMENT
BETWEEN

ATLAS MANUFACTURING

AND

**INTERNATIONAL ASSOCIATION OF SHEET METAL,
AIR, RAIL AND TRANSPORTATION WORKERS
LOCAL 10**

*April 1, 2025
Thru
March 31, 2027*

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1. General Matters/Activities:

This is an Agreement, made and entered into by and between Atlas Manufacturing, a Division of Meribel Enterprises, LLC located at 2950 Weeks Avenue S. E. Minneapolis, MN and the International Association of Sheet Metal, Air, Rail and Transportation Workers Local 10. By mutual consent of both parties, this Agreement establishes rules and regulations to govern employment, wage scales and working conditions of production employees and non-office indirect labor floor employees as established and recognized under this Agreement.

For clarification of agreement language, Atlas Manufacturing, a Division of Meribel Enterprises, LLC, will be hereinafter referred to as "Company", International Association of Sheet Metal, Air, Rail and Transportation Workers Local 10, will be hereinafter referred to as "Union" and "Operations Management" refers to Plant Manager or Production Supervisors. When specific Company or Union sub-party positions are referenced for clarification or specific assignment, any such reference will be noted as such by Position Title. The Company and Union will identify in a written notification of all individuals assigned to specific sub-party positions and updated when positions or personnel change. Examples are as follows: Company President, Supervisor and Union Business Agent, Steward and Committee members.

A. Company and Union Agreements:

The Company and Union agree that, as of the signing of this contract the following actions will be deemed complete:

- Any employee hired prior to 1 November 2002, will have a seniority date of 1 November 2002.
- Employees hired after 1 November 2002, will have seniority date as date of hire.
- The Company will recognize employee original hire date for purpose of years of service awards and vacation accrual. Employees of Atlas Manufacturing prior to Meribel Enterprises acquisition on September 26, 2002, have a Grandfather clause and will maintain existing personal and vacation time balances.
- All Employees' attendance and disciplinary records will start, as of September 26, 2002.
- Employees will start with a clean slate with no attendance or individual disciplinary records, as of 1 November 2002.
- The Company will retain all original new hire paperwork, work qualification, training and safety letters/records.
- The Company and Union agree that during the term of this Agreement there shall be no strikes, stoppage or slowdowns of work or lockouts.

B. Company Agreements:

The Company agrees to the following:

- Not enter into any agreement with the employees individually or collectively, which in any way conflicts with the terms or provisions of this Agreement
- Not discriminate in any manner against the employees because of membership or activity in the Union.
- Provide access to the plant for an authorized representative of the Union (Business Agent) during normal shift hours when the plant is open when prior notice is given to the Company's Operations Management.
- Provide access to the plant for an authorized representative of the Union (Business Agent) during times when the plant is closed by arrangement with the Company's Operations Management.
- To ensure that employee is offered Union representation when called before management to be reprimanded. Union employee has right to sign away representation with waiver pending Company approval.

Exclusion to this requirement is verbal non-recorded counseling that doesn't result in formal reprimand.

- Security cameras will be used only for the purpose of protecting the property of the Company and employees against criminal acts such as theft, depredation, damage to property, the monitoring of equipment and safety for all employees. At no time will the camera system be used as a means to evaluate an employee's performance or to gather evidence in support of disciplinary actions, unless such disciplinary actions result from a commission of a criminal act or injury. Recording devices will not be used in non-work areas in which employees have an expectation of privacy, such as bathrooms, changing rooms, areas designated for expressing breast milk. The Company may from time to time install and use additional video recording devices in the plant. The Company will notify the Union of the location of any additional cameras in the plant. The Company will retain video information for a maximum of 31 days.
- Ensure Part-time, Temporary, and Intermittent employees do not exceed 10% of overall workforce.

C. Union Agreements:

The Union agrees to the following:

- Not to carry on any union activities during working hours with the following exceptions:
 - a. Settlement of grievances provided that the handling of such grievances is done in a non-disruptive manner,
 - b. Union benefits informational meetings,
 - c. Union committee and Company management meetings.
- Coordinate with Company's Operations Management to ensure expeditious accomplishment and coordination for all activities so as not to jeopardize or disrupt operations.
- Provide a duly elected Union Committee that shall represent employees individually and collectively in all collective bargaining with the Company, and other relative matters as may be delegated to it. This Committee shall consist of (1) designated Union Steward and (4) committee members selected from all shifts to provide the best overall democratic representations possible based on the number of employees on each shift. Meeting and payment of this Committee will be negotiated and coordinated with the Union Business Agent and the Company's Operations Management.

2. Recognition and Employment Status Definitions:

The Company and Union recognize each as the sole collective bargaining agent for the employees as follows:

A. Union:

All regular full-time and part-time production employees and non-office indirect labor floor employees as indicated by position, job description and wage classification rates in Exhibits, of this agreement. Note: Any regular full-time and part-time production employee or non-office indirect labor floor employee can perform of voluntary free will, as offered by Company in limited non-negotiated form, work in office indirect or technical positions. The only limiting factor will be that they cannot perform any supervisory functions outside of normal lead duties, as not to create conflict with other Union workers.

B. Company:

All regular full-time office employees, both exempt and non-exempt pay status, who work in professional, supervisory, administrative, technical or sales positions.

These employees will not perform production work with intentions to displace or cause loss of normal regular work for a Union employee covered in this agreement. These employees can perform production work when coordinated by the Operations Management and/or communicated to the Union Steward and a Business Representative of the Union, in advance, for the following reasons:

- To maintain or gain on floor work proficiency or experience
- To gain firsthand knowledge and provide efficiency when prototyping new parts maintaining cost competitiveness and customer satisfaction in non-production part runs
- To assist or fill in Union labor shortage due to excessive vacation, personal time or excessive absence of normal Union production labor
- When unexpected work increase has caused labor shortage, only after initiation of expeditious efforts to hire personnel to replace required labor on part time or full-time basis.

All temporary or intermittent employees, who work in professional, supervisory, administrative, technical, sales positions and limited production workers when unexpected work increase has caused immediate short term labor shortage.

Any employment of production employees and non-office indirect labor floor employees as indicated by position, job description and wage classification rates in Exhibits, of this agreement, will be offered and controlled by the following requirements and actions:

- There will be no part-time, temporary, or intermittent production employees hired during a layoff unless deemed appropriate through decline of work by layoff workers, as verified by Union Steward and a Business Representative of the Union
- Unexpected work increases must be noted and reported to Union Steward and a Business Representative of the Union prior to hiring of part-time, temporary, or intermittent employees.
- Any hiring of part-time, temporary, or intermittent employee must meet the following criteria:
 - a. Part-time, Temporary or Intermittent employees may not exceed 30 hours per week
 - b. These employees will not perform production work with intentions to displace or cause loss of normal regular work for a Union employee covered in this agreement.
 - c. These employees will work primarily in non-technical positions with limited utilization of major equipment, to limit safety and work comp risk.

- d. Primary positions will be Sheet Metal Fabricator I or no higher than the lowest level in any other job classification, major exceptions will be when integrated with Union worker.
- e. As of 4/1/23, existing Part-time, Temporary, or Intermittent employees will be allowed to remain in their current classification.
- f. Any Full-time employee with a minimum of ten (10) years seniority will be allowed to work part time in any job classification level.
- g. Any Part-time, Temporary, or Intermittent employee will not displace or deny the rights of a full time Union employee to work overtime.
- h. Any Part-time, Temporary, or Intermittent employees are not eligible for Company benefits.
- i. Should any non-union employee work on the floor as provided for in Article 2, union members capable of working in that specific resource will be allowed to work unlimited overtime in accordance with all other sections of the CBA.

3. Union Security and Dues Deduction:

All employees covered by this Agreement shall be required as a condition of employment to become and remain members of the Union in good standing during the term of this Agreement. The test of good standing shall be in accordance with applicable law.

There shall be no discrimination because of Union affiliation. The parties agree that all present employees covered by this Agreement, who are members of the Union in good standing on the effective date of this Agreement shall remain members of the Union in good standing. It shall also be a condition of employment that all employees covered by this Agreement and hired on or after its effective date shall on the completion of the probationary period following the beginning of such employment become and remain members in good standing in the Union.

The Employer agrees upon written authorization from the individual employee, to deduct from each paycheck an equal portion of pay, as collection and payment for the following month's union dues, initiation fees and such other deductions as may now or hereafter be permissible under the Taft-Hartley Act, as amended. The Company will monthly remit same to the Financial Secretary of the Union, with an itemized statement showing from whom deducted and the amounts. The Company further agrees that shall any employee have no earnings due during any week, deductions shall be made from the next succeeding pay of the employee.

Any employee covered by this Agreement who voluntarily refuses to go through a picket line on the premises of this Employer, or any other premises where a labor dispute exists, shall not be deemed to have violated this Agreement.

4. Job Opportunities, Probation & Orientation Periods:

A. Job Opportunities:

Job opportunities are Company determined based on work requirements and organizational needs. As the Company grows or requirements change, there will be a requirement for the changing of the work force. To facilitate these needs of upward change, in a fair and equitable manner, the following procedures and actions need to occur:

1. Company:

- When possible, encourage cross training, trial and training in higher classifications of employees to enable upward advancement.
- Limit assigning of work normally performed in a job classification with a higher rate of pay except for purpose of training or cross training. If an event occurs that would require more than (2) weeks of continuous work in a class of higher pay – Operations Management, Union Steward and the individual affected will come to a compromise or remedy for the situation. If none can be reached, the individual is not required to work upward out of class.
- Identify job opportunities
- Ensure posting is for the position and/or class that meets the Company's labor requirements. (Company does not have to post lesser classifications, i.e., "trainee")
- Post opportunities in the form of a "Job Posting" (Job Posting Form, Exhibit A, this Agreement), to be displayed for (3) working days on the Company bulletin board.
- Operations Management will do the following:
 - a. Develop interview criteria and questions based on, but not limited to, seniority, attendance, specific job skills, technical knowledge, communication, learning aptitude, quality and individual job performance efficiencies
 - b. Interview posting candidates based on established questions and interview criteria.
 - c. Rank individuals, determine qualifications of posted individuals, recommend selection or non-selection and compile list of qualified interviewees, for new position selection, which will be valid for (3) months.
 - d. Provide feedback to interviewees.
 - e. Ensure that all interviewed and qualified employees will have an opportunity for advancement prior to hiring of outside personal.
 - f. Be prepared to conduct additional interviews, ranking, determine qualifications, recommend selection or non-selection of personnel outside the organization, based on non-qualification of existing personnel.
 - g. Notify the Union Steward of the final selection.
 - h. Selected employee will not be allowed to post for another position for a period of 6 months.

2. Union Employees:

- Perform current position to high standard and prepare for the future.
- Seek and actively strive for advancement, in active choice to work upward or downward out of class for training and cross training purposes.
- Sign for postings that you feel you are qualified.
- Conduct yourself to the best of your ability during interview process

- Excel in work in new position to prove worth of selection (both during probation as well as everyday there after)

B. Probation & Orientation Periods:

Probationary periods are the initial period in a new position that enables the employee to learn a new position, show progress and potential, and overall grow to full capacity. It further allows time for the Company to review the employee's capabilities, learning aptitude, work habits, quality and proficiency. During the probationary period, the Company shall have the right to retain in employment (new or temporary employee) or position (current employees), or the right to discharge (new or temporary employees only) or return to old position (current employees). The probationary employee may not challenge his/her discharge or return to old position through the grievance procedure. The probation type, length of time, affect on seniority and union due issues are as follows:

Probation Type	Length Probation	Union Seniority	Union Dues
New Hire	(3) Months	Seniority = Date of hire	Start paying upon completion
Temp/Hire	(3) + (1) Months	Seniority = Date of hire	Start paying upon completion
New Position	(1) Month	No Change	No change
Part Time/Intermittent	480 hours	Seniority = Date of hire	Start paying upon completion

5. Hours/Rest Periods/Overtime/Attendance/Absences:

A. Core Shift Hours of Operation:

Regular Shop hours are:

Shift	Hours	Days
(1st shift)	6:00 a.m. – 2:30 p.m.	Monday – Friday
(2nd shift)	2:30 p.m. – 1:00 a.m.	Monday – Thursday
(3rd shift)	6:00 a.m. – 6:30 p.m.	Friday – Sunday
(Flex Shift)	5:00 a.m. – 1:00 a.m.	Monday – Friday

The Company has currently established the work shifts listed above. At the request of the employee, a flex shift is available to allow employees to schedule their core hours and is subject to approval by Operations Management. The shop steward will be notified of all employees on a flex shift and their core hours. The Union acknowledges the right of the Company to establish additional shifts and/or to modify the established shifts in the future, pending a (2) week notice to affected employees. All employees will be required to "cover" or work the core hours of their assigned shift for a good attendance day.

No employee will work more than 12 hours per shift. All employees will have an 8-hour non-pay break between shifts. Exceptions may occur with specific permission from Operations Management, on a case-by-case individual basis.

Whenever an employee who has finished his/her regularly scheduled shift and left the Company premises is called back by the Company to work, said employee shall be paid portal to portal including mileage at the published IRS rate. The pay rate will be determined by overtime guidelines defined in section 5C.

Pay during voluntary travel for company business shall be at the core hourly rate and up to a maximum of eight (8) hours. Overtime pay will only apply if the travel extends beyond the normal scheduled work week for that employee.

Pay for training will be paid at the core hourly rate regardless of the hours worked for the day or week and regardless of the day worked.

B. Rest Periods:

The term "rest periods" is representative of any period of time which purpose is to cause a break in normal work activity for purposes of rest, socialization and performance of bodily functions (i.e. eating, drinking, bathroom breaks, individual cleanup, socialization as well as others). Primary intent of "rest periods" is to create a safer and more pleasant working environment. Some rest periods are paid, and some are not, as listed below. General rules governing rest periods are as follows:

1. Break periods:

Break periods are paid time periods. Employees will individually select their break periods between the hours of 8:30 a.m. and 10 a.m. or between 5:00 p.m. and 6:30 p.m. and between 9:30 p.m. and 11:00 p.m. Employees may NOT leave the premises during a paid break. The chart listed below is the guidelines for length of break periods (actual number and specific times may vary). The chart below should also be followed when working

overtime.

Hours Worked Per Day	Number of Breaks	Break Length
Fewer than 4	0	No Break
4 but fewer than 7	1	10 minutes
7 but fewer than 10	2	10 minutes
10 or more	2	1 – 10 minute, 1 – 15 minute

2. Lunch periods:

Lunch periods are non-paid periods and must be taken each day. The lunch period will be 30 minutes and selected individually by the employee between the hours of 11:00 a.m. and 12:30 p.m. or between 7:00 p.m. and 9:00 p.m. Lunch periods may not be combined with break periods. Employees must clock out and back in if they leave the premises for their lunch period. Employees may work through lunch and receive pay with prior approval from Operations Management.

C. Overtime:

Operations Management is the authorizing authority for overtime. Operations Management will determine the need for overtime based on work requirements. Employees must volunteer, be qualified to perform the work, and obtain permission to work overtime. Any employees desiring overtime must sign up on the posted sheets. Sheets will be posted every Wednesday for overtime availability from Friday – Sunday and every Friday for overtime availability from Monday – Thursday. If an employee doesn't sign up, they are not allowed to work overtime. Availability will be based on 1. Workload, 2. Machine availability, 3. Skillset and 4. Seniority. An employee working overtime may not displace another employee working their core hours. Part time, Temporary, or Intermittent employees shall not be authorized any overtime.

For purposes of computing overtime, the following shall be counted as time worked for a full day (full day = 8 hours): paid holidays, Vacation, jury duty and bereavement leave. All other absences will be cause for reduction in overtime pay. Employees will receive overtime pay for the following conditions:

Times Pay	Conditions
1 ½	Any time worked beyond normal length of shift (Note: core shift hours must be worked) except when Vacation or floating holiday are utilized to cover core hours beyond normal daily core hours, then straight time will apply
1 ½	Any time worked beyond normal length of week (Note: dependent on shift length, core shift hours must be worked)
2	Any hours worked on the 7th day or hours worked in excess of 60 (Note: 7th day will normally be Sunday; core shift hours must be covered. Must have worked 40 hours to be eligible. Hours worked on 7th day may not exceed hours worked on previous days, must be individually pre-approved by Operations Management, no exceptions.
3	Holiday, normal holiday pay plus 2 times hours worked must be individually approved by Operations Management, no exceptions.

D. Premium Pay:

Employees working the 3rd shift will receive 4 hours premium pay as long as the core shift hours have been worked. The following shall be counted as time worked for a full day (full day = 8 hours): paid holidays, Vacation, jury duty and bereavement leave. All other absences will be cause for a loss of premium pay.

E. Attendance:

Effective 4/1/23, a "no-fault" absence program recognized the inevitability of occasional absence and avoids the dilemma of judging which absences are excused and which are unexcused. The no-fault concept disposes of the problem of unequal treatment of employees, supervising inconsistencies, and favoritism.

This attendance policy uses an easy-to-understand point system. It is designed to ensure uniform and equitable treatment based on objective standards. It will provide every employee with clear guidelines to know where he/she stands with regard to attendance at any given time, and to assist in correcting any absentee problem. This is how it works:

- New Employee – New employees will start at zero (0) points upon hire
- Time Period – The attendance program is based upon a calendar year beginning January 1st and ending on December 31st each year (pro-rated for new hires). Points will return to zero (0) every January 1st
- Points – The following absences will not result in any points being assessed:
 - Vacation
 - Reserve duty
 - Holidays
 - Contractual time off
 - Jury duty
 - Industrial injury (Work Comp)
 - Approved leave of absence (LOA)
 - Company excused due to lack of work
 - Bereavement
 - Emergency situations (car accidents, hospitalizations, etc.)
 - ESST (Earned Sick and Safe Time)

(It is the responsibility of the employees to provide documented proof of any "point-free" absences. All other absences not listed will result in one (1) point being assessed for each day missed.)

- Absences Without Proper Notification – All absences must be reported by the employee (text, email or phone call) no later than one (1) hour after the start of their scheduled shift. If not reported within the first hour, one-half (1/2) point will be assessed. Failure to report an absence any time during their scheduled shift will result in the assessment of two (2) points, one (1) for the absence and (1) for not properly reporting in.
- Absences, Tardies, and Leaving Early – Missing work will be assessed points as follows:
 - Missing up to two (2) hours – One-half (1/2) point
 - Missing more than two (2) hours – One (1) point
- Reporting To Work – Anyone who is absent for more than one (1) day, and/or did not report more than one (1) time of absence must call in every day to report their absences. If the person notifies us the exact timeframe he/she will be off, subsequent calls are not necessary. After a person is on an approved leave of absence, he/she need not call in daily. If an employee does not call or show up for three (3) consecutive days, the employee will be considered to have voluntary quit.
- Corrective Action/Attendance Related Warnings

- 1. An employee who reaches two (2) points in any calendar year will receive a verbal warning and the attendance policy will be reviewed with him/her
- 2. An employee who reaches four (4) points in any calendar year will receive a written warning
- 3. An employee who reaches five (5) points in any calendar year will receive a second written warning along with a 2-day unpaid suspension
- 4. An employee who reaches six (6) points in any calendar year will be subject to termination at the employer's discretion

F. Absences:

The Company understands that employees cannot be at work during their normal shift hours all the time. It is the responsibility of the employee to communicate as early as possible with Operations Management when and for what purpose an employee will be absent. It is the employee's responsibility to request time off in ADP promptly. If the employee doesn't update ADP and communicate properly with Operations Management to cover time missed, they could be charged with points (per the Attendance Policy) and/or have unpaid time on their next payroll check. The Company recognizes that an employee may be absent for the following reasons:

1. Personal Time:

Personal time does not count as time worked for overtime purposes. Personal time may be used in increments as small as 1 hour. An employee MUST request time off in ADP in advance at least one (1) hour prior to taking and receive documented acknowledgement by a member of Operations Management, Human Resources or the President before leaving the building. The one (1) hour notice begins when the employee has received documented acknowledgement. In the case of an emergency, the 1-hour notice requirement may be waived by the Operations Management if the employee makes an attempt at proper communication. Personal time balances will remain indefinitely until the balance is zero.

2. Vacation:

The Company provides paid time off to employees for vacation/recreation, personal business or to protect your income in case you miss work. Part-time, Temporary, and Intermittent employees working less than 32 hours per week are not eligible for Vacation. Vacation may be taken in 1-hour increments. This time is to be scheduled through ADP and acknowledged by Operations Management one (1) business day (Monday – Friday) in advance (except in the case of a Bonafide emergency) and is subject to approval based on the needs of the business. Employees will accrue Vacation time every pay period from their date of hire, according to the following schedule:

	Annual Hours	Accrual Rate
Employees in year 1, 40 hours:	40 hours	Accrue .77 hours per week
Employees in years 2-5, 80 hours:	80 hours	Accrue 1.54 hours per week
Employees in years 6-10, 120 hours:	120 hours	Accrue 2.31 hours per week
Employees in years 11-19, 160 hours:	160 hours	Accrue 3.08 hours per week
Employees in years 20+, 200 hours:	200 hours	Accrue 3.85 hours per week

Following successful completion of the probation period, a new employee's accrual for Vacation will be retroactive to the first day of employment. New employees may use time as soon as it is accrued after completing the probation period.

The maximum balance an employee may have at any time is two times their annual accrual amount. If at any time an employee's balance reaches the maximum, their accrual will stop until their balance falls below the maximum. The employee will forfeit any amount that would have normally accrued. The Company will not compensate the employee for unused Vacation time (employee cannot elect to have their Vacation time "paid out").

Employees scheduled to be on Vacation for a week or more may request a check prior to the beginning of their scheduled Vacation. This will only be possible if the employee has provided the Vacation request sufficiently in advance (approximately two weeks).

If a paid holiday occurs during the employee's Vacation period, the employee shall receive holiday pay in addition to full Vacation pay (if employee elected to use a Vacation day on the holiday). Holiday pay occurring during an employee's scheduled Vacation is payable at the same time that the employee receives Vacation pay.

Employees laid off due to lack of work, illness, accident, injury off the job, leave of absence, discharge, military service, or who terminate employment for any reason may receive their accrued Vacation pay in excess of forty-eight (48) hours as of their final day, provided they have satisfied the probation period AND provided a two (2) week notice and worked the entire notice period. Vacation cannot be used to supplement the resignation notice.

All Vacation utilized for coverage of core hours on a daily basis, will be paid at straight time.

The Company reserves the right to freeze or deny any new Vacation requests departmentally or plant wide due to business needs for a period not to exceed fourteen (14) consecutive calendar days and not utilized more than once in any quarter of a contract year or consecutively. The Company will provide a three (3) day notice before freezing any new Vacation requests.

3. ESST (Earned Sick and Safe Time):

All employees (including Part Time, Temporary, or Intermittent) accrue job-protected, paid Earned Sick and Safe Time (ESST) under this policy to use for 1) their own medical needs and the medical needs of their family members, 2) their own safety needs and those of their family members in connection with being victims of stalking, or domestic assault/violence, and 3) other reasons outlined below.

Contact the Human Resources Department with any questions you have about ESST that aren't addressed in this policy.

Eligibility and benefit year

All employees performing or anticipated to perform at least 80 hours of work in Minnesota during the benefit year are eligible to accrue and use ESST under this policy. Our benefit year is the 12-month period starting on January 1st and running through December 31st.

Leave accrual and year-end

Employees accrue one hour of ESST time for every 30 hours they work, up to a total of 48 hours in our benefit year. Once employees have accrued 48 hours in our benefit year, further ESST accruals will stop until the start of the next benefit year. 80 hours is the maximum ESST balance that employees may carry, which means that when employee ESST balances reach a cap of 80 hours, further accruals will stop until ESST time is used and the employee's balance drops below 80 hours.

At year-end, employees may carry up to 80 hours of unused ESST time into the next benefit year.

Reasons for which leave can be used

ESST may be used for the following reasons:

- Your own illness, injury, health condition, and preventive care
- A "family member's" illness, injury, health condition, and preventive care
- Leave related to your needs or family member's needs in connection with domestic violence, sexual assault, or stalking
- Time off needed to make arrangements for or attend funeral services or a memorial, or address financial or legal matters that arise after the death of a family member
- Closure of your work location or a family member's school/place of care due to weather or public emergency
- Your inability to work/telework as a result of employer-imposed quarantine due to health concerns related to the potential transmission of a communicable illness related to a public emergency, or while awaiting diagnostic test results
- When a health authority or health care professional determines that you or family member's presence in the community would jeopardize the health of others

Family members for whom ESST can be used include your:

- Child, foster child, adult child, legal ward, child for whom you are a legal guardian, or child to whom you stand or stood in loco parentis
- Spouse or registered domestic partner
- Sibling, stepsibling, or foster sibling
- Biological, adoptive, or foster parent, stepparent, or a person who stood in loco parentis to you when you were a minor child
- Grandchild, foster grandchild, or step-grandchild

- Grandparent or step-grandparent
- Child of your sibling (nieces/nephews)
- Sibling of your parents (aunts/uncles)
- Child-in-law or sibling-in-law
- Any of the family members listed above of your spouse or registered domestic partner
- Any other individual related by blood or whose close association with you is the equivalent of a family relationship
- Up to one individual per year not listed above whom you formally designate

Using ESST

There is no waiting period for ESST and it can be used as it accrues. However, you will not be allowed to use ESST prior to accruing it, which means that any time off taken in excess of your accrual balance will be considered unpaid time off.

Accrued time under this policy will be automatically applied to any ESST-covered time off from work that you may take. If you are absent from work for a reason that is covered by ESST and you do not want time under this policy to be used for the absence, you must promptly submit a written request stating that ESST time should not be applied. Absences for which ESST time is not used may be subject to discipline, even though the absence may be for an ESST-covered reason.

For foreseeable absences, you are generally required to provide at least seven (7) days of notice of your need for leave or as soon as practicable. For unforeseeable absences, you should notify your direct supervisors before the scheduled start of your workday if possible and follow the absence reporting procedures set forth in our Attendance policy. Your direct supervisor must also be contacted on each additional day of absence. Delayed notification to supervisors, or failure to follow proper reporting procedures, may result in disciplinary action. An employee MUST request time off in ADP.

ESST time can be used in minimum increments of 15 minutes.

ESST is paid at your base pay rate at the time of absence. ESST does not count as hours worked for overtime purposes.

If your need for leave is greater than 3 consecutive days for which you are scheduled to work, you may be required to provide documentation confirming the need for absence.

ESST time used under this policy and any of our other leave policies (e.g., FMLA, Parental Leave, etc.) will run concurrently under, and count against, both policies.

Termination/resignation of employment

Unused ESST will not be paid out upon the termination, resignation, or cessation of employment. However, employees rehired within 180 days from their last date of employment will have their unused ESST balances reinstated, unless those balances were previously paid out at the time of separation. ESST can't be used to supplement a 2-week termination notice.

****(the above ESST section is subject to change at any time to comply with the MN Statute. All changes will be made via a letter of understanding)****

4. Holidays:

All full-time employees, working 32 or more hours per week, shall receive holiday pay (8 hours) at their regular hourly rate. Part-time, Temporary, and Intermittent employees working less than 32 hours per week are not eligible for holiday pay. The Company recognizes the following as paid Holidays:

New Year's Day	Memorial Day	Independence Day	Floating Holiday
Labor Day	Thanksgiving Day	Day after Thanksgiving	
Christmas Eve Day	Christmas Day	New Year's Eve Day	

The exact days when New Year's Eve Day, New Year's Day, Independence Day, Christmas Eve Day and Christmas Day will vary each year depending on which day of the week the holiday falls. In the event that a holiday falls on a weekend, the day the holiday will be observed will be determined with employee input.

An employee will be eligible to receive holiday pay only after they have completed their probation period and must have worked the scheduled day prior to and the scheduled day after the holiday. The following non-worked hours will be counted as hours worked the day prior to and the day after the holiday for holiday pay purposes: prior-approved Vacation, floating holiday, jury duty and bereavement leave.

In the event an employee is late before or after a holiday due to severe weather, traffic or other unforeseen conditions, the Company will allow a 1-hour grace period to not lose holiday pay. The employee will have the option to make up the missed time at straight time during the same pay period. If the time is not made up or covered by the Floating Holiday or pre-approved Vacation, the employee will lose their holiday pay.

If the Company decides to shut down for additional days during a holiday period, the Company will give the Union Steward at least ten days advance notice of the shutdown. The Company will honor any Vacation requests IF the Vacation was planned ahead and approved prior to the announcement of the shutdown.

The Floating Holiday referred to in the above holiday schedule will be administered under the following procedures:

- a. New Employees hired after August 31. Will not be eligible for a floating holiday until the following year.
- b. Employee Usage. Employees may choose to use the Floating Holiday in 4-hour increments with no advance notice for "spontaneous needs" and would be counted as hours worked at straight time. If an employee chooses not to use the Floating Holiday by the end of the year, it will be paid out on the first paycheck of the new year. If an employee terminates, either voluntarily or involuntarily, they will not have the Floating Holiday paid out if it hasn't been used before the termination date.

In the event a substantial number of employees take the same floating holiday, the Company reserves the right to consolidate the shifts on that day. The company will give the Union Steward at least two (2) days advance notice of this consolidation.

All floating holiday utilized for coverage of core hours on a daily basis, will be paid at straight time.

5. Leave of Absence:

A leave of absence is an approved period of inactive employment of employees. There are different types of leaves, with or without pay, depending on the reason for the absence. Generally, the company will attempt to place you in the same or similar position upon your return from the leave, however this is not guaranteed. If you do not return to work when a leave expires, it will be considered a voluntary resignation. You are not allowed to work another job while on a leave of absence.

The Company will provide you with any leave of absence required by law, in accordance with the provisions of the law. Any other request for leaves of absence, not legally required, will be reviewed against the overall business needs and the Company's ability to replace you during your absence, and will be approved on a case-by-case basis, at the discretion of Operations Management in coordination with the Union Steward. The Company agrees to notify the Union Steward and the Business Representative of the Union upon approval of any leaves of absence. A monthly report of all union employees on a leave of absence will be provided to the Union Steward and the Business Representative of the Union. This report will include initial date of leave, an expected date of return and an actual date of return.

For any leave of absence, an employee must request approval from Operations Management. Submit the request in ADP as far in advance as possible or the request may be denied. The following are the noted leaves of absence that the Company acknowledges as acceptable leaves of absence:

a. Family and Medical Leave (FMLA):

We grant up to 12 weeks (or 26 weeks, if leave is taken to provide care for qualifying family member injured during active military service) of family and medical leave during any 12-month period to eligible employees, in accordance with the Family and Medical Leave Act (FMLA).

Eligibility

In order to qualify to take family and medical leave under this policy, you must meet all of the following conditions:

- You must have worked for us at least 12 months (these 12 months need not have been consecutive);
- You must have worked at least 1,250 hours during the 12 months period immediately before the date when the leave would begin; and
- You must work in an office or worksite where 50 or more employees are employed within 75 miles of that office or worksite. (If you have no fixed office or work out of your home, you will be treated as though you work in the office to which you report.)

Reasons for Leave

In order to qualify as FMLA leave under this policy, you must be taking the leave for one of the reasons listed below:

- The birth of a child;
- The adoption of a child, or the placement of a child with you for foster care;
- Your own serious health condition;
- To care for a spouse, child or parent with a serious health condition;
- Due to a qualifying exigency for the spouse, children, or parents of individuals who are on, or are about to be on, covered active duty; or
- To provide care for a covered servicemember with a serious injury or illness incurred or aggravated in the line of duty while on active duty.

Leave that qualifies for paid time off, workers' compensation, short-term disability, or other wage replacement benefits may also qualify as FMLA leave and, if so, the time off will also be counted as FMLA leave. If you have questions about whether your leave may be covered under this FMLA policy, you are encouraged to consult with the Human Resources Department.

Duration of Leave

12 Weeks

For all FMLA covered leaves other than leave taken to provide care for a covered servicemember, if eligible, you can take up to 12 weeks of leave under this policy during any 12 months period. We use a rolling 12-month period measured backward from the date you use any leave under this policy to determine whether you have exhausted your 12 weeks of leave. Each time you take leave, we will compute the amount of leave you have taken under this policy for any form of FMLA leave in the last 12 months and subtract that amount from your 12 weeks of available leave; the balance remaining is the amount you are entitled to take at that time.

26 Weeks

For all FMLA covered leaves taken to provide care for a covered servicemember, if eligible, you can take up to 26 weeks of leave under this policy during any single 12 months period. This single 12-month period begins on the first day you take FMLA leave to provide care for the covered servicemember. Any FMLA time taken for any other reason during this single 12-month period shall count against the 26 weeks of leave available to care for the covered servicemember. Similarly, any FMLA time taken to care for a covered servicemember shall count against the 12 weeks of leave available to you for any other reason.

Spouses

Spouses who both work for us are limited to a combined total of 12 weeks of leave for the birth of a child, adoption or placement of a child in foster care, to care for a parent with a serious health condition. Similarly, if you and your spouse both work for us, you are both limited to a combined total of 26 weeks of leave to care for a covered servicemember.

Employee Benefits During Leave

During your leave, we will continue to provide you with the benefits in which you have enrolled for as long as any law might require us to do so, or until such time as you cease to be eligible under the terms, conditions, and limitations of the applicable plans.

While you are on leave, you will continue to be responsible for your share of the insurance premiums and will be required to make regular payments in order to continue your coverage. During any parts of your leave for which you may also be using paid time off, we will continue to make payroll deductions as normal to collect your share of the premiums.

However, at the point that your leave becomes unpaid, you will be required to submit monthly payments to the Human Resources Department by the 1st day of each month of your leave. If the payment is more than 30 days late, your health and other coverage may be terminated for the remainder of your leave.

In some cases, you may be offered COBRA or USERRA continuation coverage if you are gone from work long enough, or if we are not required by law to continue your benefits. If so, you will have to formally elect continuation in order to stay on the applicable insurance plans. See our COBRA Continuation Coverage or Military Leave policy for more information.

If you lose coverage or have elected COBRA during your leave, we will reinstate you as an active participant upon your return from leave, according to the terms of each plan. If we have chosen to pay your portion of the premiums on your behalf during your leave, you will be required to repay us any such amounts at the end of your leave.

Use and Accrual of Paid and Unpaid Leave

FMLA leave is unpaid, except where you are receiving worker's compensation, short-term disability, or similar wage replacement benefits. Notwithstanding any other policy to the contrary, during periods of intermittent FMLA leave, paid time off can be used in the same increment as the amount of FMLA leave taken.

Benefit accruals, such as Vacation, will be suspended during any unpaid portion of the leave, and will resume upon return to active employment.

Intermittent Leave or a Reduced Work Schedule

In addition to taking leave in consecutive blocks of time, you may be allowed to take time off intermittently (i.e., reduced workweeks or reduced workdays) if needing leave for one of the following reasons:

- Your serious health condition;
- The serious health condition of your spouse, parent, or child;
- To provide care for a covered servicemember with a serious injury or illness incurred or aggravated in the line of duty while on active duty; or
- Due to a qualifying exigency if you are the spouse, child, or parent of an individual who is on, or is about to be on, covered active duty.

To qualify for intermittent leave, you must show that the intermittent leave is medically necessary or related to a "qualifying exigency." If leave is taken on an intermittent or reduced leave schedule due to foreseeable leave needs (other than qualifying exigencies), we may temporarily transfer you to an alternative position with equivalent pay and benefits.

Certification of the Need for Leave

We may ask for certification to verify the need for leave for the reason requested by you. You must respond to such a request within 15 days of the request or provide a reasonable explanation for the delay. Failure to provide certification may result in a denial of the leave. We may also require recertification during the leave to verify the status of the need for leave.

We may directly contact the healthcare provider or other third-party to verify and clarify information contained in the certification. You are responsible for signing or obtaining any authorization necessary to permit the healthcare provider or other third party to provide us with the required information.

We have the right to ask for a second opinion of a certification of a serious health condition. Should we choose to do so, we will pay for you to get a certification from a second healthcare provider, which we will select. If it is necessary to resolve a conflict between the original certification and the second opinion, we will require the opinion of a third healthcare provider. We (you and us) will jointly select the third doctor, and we will pay for the opinion. This third opinion will be considered final.

Returning from Leave

If you take leave under this policy, you will be returned to the same job you held when your leave began. If this is not feasible, you will be returned to a position that entails substantially equivalent skill, effort, responsibility and authority as the position you previously held. The only exceptions to this rule will be in circumstances of layoffs or reorganizations, where your position would have been eliminated even if you had not been on leave. You may be required to provide a fitness for duty assessment when returning from a leave of absence for your own serious health condition.

Procedure for Requesting Leave

When you plan to take leave under this policy, you must give the Company thirty (30) days' notice. If it is not possible to give thirty (30) days' notice, you must give as much notice as is practicable. If you are undergoing planned medical treatment, you are required to make a reasonable effort to schedule the treatment to minimize disruptions to our operations. If you fail to provide 30 days' notice of foreseeable leave, the leave request may be denied until at least 30 days from the date we received notice.

When you request leave under this policy, you must submit the request via ADP providing a reason for the leave and communicate with Operations Management and Human Resources. Where the need for leave is not foreseeable, you must verbally notify Operations Management of the need for leave as soon as possible and follow our normal call-in procedures for unexpected absences. Failure to follow our normal call-in procedures under such circumstances will be treated like any other violation of our call-in procedures, and may result in discipline or termination, even though the leave itself may be covered by the FMLA. You may be required to confirm your need for FMLA leave in writing after giving verbal notice.

While on leave, you may be required to periodically report to us regarding the status of your intent to return to work.

Rights, Remedies, and Additional Information

Words that appear in italics or quotes in this policy are terms defined by the FMLA and we will rely upon those definitions in the law and regulations.

We fully comply with the provisions of the FMLA. Accordingly, if you have questions regarding this policy, contact the Human Resources Department. Further information on your rights and remedies under the FMLA can be located on our FMLA poster (which can be found in the company break area), or online on the Department of Labor's website at: <http://www.dol.gov/esa/whd/fmla/>.

b. Jury Duty:

All employees will be granted time off for jury duty upon presentation of the jury summons to the Operations Management/Supervisor and requesting the time off through ADP. If you are a full-time regular employee and are required to serve on a jury during your scheduled hours, you will receive the difference between jury duty pay and the amount you would have earned at your standard hourly rate of pay if the jury duty pay is less than your normal salary. However, you must present an authentic summons before the service and a pay voucher after the service to be eligible for the pay adjustment. In addition, if court is recessed for the day or for part of the day, you must report to work when released during your normal working schedule. The Company will reimburse full-time regular employees up to 80 hours (2 weeks) per calendar year for time missed due to jury duty service.

c. Bereavement Leave:

All full-time employees may be granted three (3) days off with twenty-four (24) hours total pay at the straight-time rate for purpose of grieving the death of an immediate family member. You may be asked to present verification of the death. You will be paid for the leave only for those days that you would normally have been scheduled to work. Time off should be requested through ADP and communicated to Operations Management.

For the purposes of this paid bereavement leave, the immediate family shall include and be limited to the employee's current spouse, parents (including stepparents), brothers (including stepbrothers), sisters (including stepsisters), children (both natural and legally adopted), children (both natural and legally adopted) of the employee's spouse, current mother-in-law, current father-in-law, and the employee's own grandparents.

d. Personal Leave:

The Company may grant a personal leave of absence for up to six (6) weeks if the requested leave does not qualify for any of the other leaves of absence. Each leave request will be reviewed on a case-by-case basis against the overall business needs. Approval will be at the sole discretion of the Company and will be based on a variety of factors and conditions. In most cases, employees will be required to use accrued personal and Vacation time before requesting this type of leave. Employees requesting a personal leave of absence must submit the request through ADP and have it approved by Operations Management.

6. Seniority/Cause and Discharge/Grievance Procedure/LOW & Layoff/Recall:

A. Seniority:

Seniority shall be on a plant-wide basis. An up-to-date seniority list shall be so arranged that the employees shall be listed numerically as to length of service with the Company and a copy of the list shall be provided monthly to the Union Steward and the Business Representative of the Union. The seniority list shall be compiled by the Company and shall include the employee's name, start date, job classification and lead designation. All part-time, temporary, intermittent and probation employees will be included with the seniority list with part-time, temporary, and intermittent employees maintained in a separate list. All dates of termination, voluntary or otherwise, will be included with the seniority list. An employee shall not lose their seniority rights because of illness or injury or recuperation therefore during the life of this Agreement. Any employee who has been laid off for a six (6) month continuous period shall lose all of his/her seniority and be removed from the seniority list.

B. Cause and Discharge:

- The Company shall discharge and discipline the employee for only just cause.
- The employees will conduct themselves in a professional, mature, responsible, ethical, safety-conscious, and hygienic manner at all times. This is necessary to protect the health and safety of everyone in the workplace, to maintain uninterrupted production, to meet our customers' needs and to protect property and goodwill
- An employee must notify the Company in writing within five (5) business days of their intent of a challenge to the discharge.

While the Company supports the theory of corrective discipline, the Company retains discretion to take disciplinary action appropriate to the particular circumstance. Violations of policies may result in disciplinary measures that may, depending on the circumstances and at the discretion of the Company, include verbal or written warnings, suspension (with or without pay), or immediate termination. These disciplinary measures do not constitute an exclusive list of possible actions and maybe taken in any order.

It is impossible and impractical to publish all practices, rules and policies, which might lead to discipline. We expect the employees to take a commonsense approach. Engaging in any of the following examples of unacceptable conduct may result in any of the disciplinary actions discussed above:

- An employee's discourteous treatment to other employees.
- Falsifying records or information (or misuse or unauthorized manipulation or duplication of data from any computer or electronic data processing equipment or system).
- Failure to accurately complete or permitting another to clock in and/or out or sign your timecard/sheet.
- Failure to comply with safety rules, procedures and practices.
- Failure to report injuries and or accidents.
- Wasting or spoiling materials due to negligence or carelessness.
- Taking Company property without permission/payment (theft) or other acts of dishonesty.
- Ordering and/or authorizing the purchase of materials or services for individual benefits without written approval in advance of being ordered from Operations Management.
- Leaving your job without permission (job abandonment).
- All forms of harassment.
- Failure to follow orders, defiance of orders or general insubordination.

- Using abusive or threatening language.
- Inappropriate or profane language.
- Fighting, threats, intimidation, or other disorderly conduct detracting from the efficient operation of the Company or any individual employee.
- Defacing or damaging Company property.
- Smoking in unauthorized areas or at unauthorized times.
- Misusing, damaging or destroying the property of any employee or customer.
- Violation of written rules concerning the use, possession, sale, manufacture, distribution, dispensation, transfer or being under the influence of alcohol or controlled substances (other than those used for a bona fide medical purpose) while working, while on Company premises (including lunch breaks and other rest periods), or while using Company machinery, equipment or vehicles.
- Arrest and conviction for criminal offenses affecting the employee's ability to adequately perform their job.
- Disclosure of confidential information.
- No firearms on Company Property.
- Sleeping, wasting time, loitering, loafing, excessive visiting, excessive personal use of the telephone or the Internet, or failure to exert normal effort on the job.
- Failure to meet customer or the Company's quality standards.
- Working another job while absent.
- Absenteeism, tardiness and/or leaving prior to the end of your scheduled work shift.
- Failure to comply with Company policies pertaining to personal appearance and cleanliness.
- Reckless, careless or unauthorized use of Company property, equipment or materials.
- Misuse of Company bulletin board.
- Refusing to work scheduled hours.
- Working overtime hours without authorization by Operations Management.
- Intentionally making false statements about any employee, the Company or its products.
- Failure to report absences (no call – no show).
- Failure to complete all necessary reports and records promptly and accurately.

C. Grievance Procedure:

Should any difference arise between the Company and the Union and its members as to the meaning and application of the provisions of this Agreement, there shall be no suspension of work or strike, nor shall the Company resort to a lockout, but an earnest effort shall be made to settle such differences immediately as set forth herewith. Settlement of grievance shall be by the following procedure:

Step 1 – A meeting shall be held between the aggrieved employee and/or Union Steward and the Operations Management. If satisfactory settlement cannot be reached within forty-eight (48) hours, then the grievance must be set out in writing stating which provision of the contract has been violated and submitted to management within three (3) days of the decision in Step 1.

Step 2 – After the grievance has been submitted in writing, a meeting shall be held between the Union Steward, the Business Representative of the Union and the President or its representative(s). If satisfactory settlement cannot be reached within ten (10) working days, procedure shall be under Step 3.

Step 3 – If the parties cannot resolve the matter through grievance process negotiation, and if the grieving party provides timely notice of its decision to carry the grievance to binding arbitration, the parties agree, within seven (7) calendar days from the notice to arbitrate, to submit the grievance to mediation through the Federal Mediation

and Conciliation Service (FMCS). It is agreed that the mediation will take place within thirty (30) calendar days from the notice to arbitrate. The parties agree to the rules and regulations of the FMCS. If the mediation is not successful, the grieving party retains its contractual right to arbitrate the grievance as outlined in this Article.

Step 4 – A neutral arbitrator shall be selected to act as impartial arbitrator. Either party may request the State Mediation and Conciliation Services to submit a list of five (5) names of persons qualified to serve as the arbitrator. The Company representative and the Union representative shall each have the right alternately to strike a name from the said list until only one name remains thereon. The party initially presenting the grievance shall have its member strike the first name. The person whose name remains on said list shall be designated as the arbitrator.

The decision rendered by the arbitrator shall be final and binding on both parties. It is agreed that each party to an arbitration shall bear the expense of its own arbitration. The expense of the arbitrator shall be paid equally by the parties to the arbitration.

D. LOW/Layoff:

The Company shall have the right to determine the number of employees needed to perform the work available. The Company shall utilize Lack of Work (LOW) by asking for volunteers based upon department, skill set and seniority if possible before engaging in layoffs. Part-time, temporary, and intermittent employees will be released first. The Company will make every effort to notify employees of LOW the day before the LOW is to occur. Employees who report for work at their regular starting time and have not been given previous notice not to report for work shall be guaranteed two (2) hours of work, based on the earned rate, unless the failure to provide work was due to circumstances beyond the control of the Company. If the employee chooses to go home immediately, they have the right to waive the two (2) hours of guaranteed work. Paid hours will count as core hours worked and will accrue all benefits associated.

In the event a layoff becomes necessary, the Company shall notify affected employees, the Union Steward and the Business Representative of the Union at least (3) working days in advance of any layoff, provided that this requirement shall not apply to layoffs of three (3) working days or less duration that are caused by breakdown of machinery or other circumstances not under the control of the Company. For the purpose of layoffs or reduction in any classification seniority of qualified employees shall apply on a plant wide basis with part-time, temporary, and intermittent employees being laid off first. During layoffs or reduction in classification for more than one (1) working day, employees displaced from their classification on their shift, shall exercise their seniority as follows:

- Displace the least senior employee in their classification on current or another shift.
- Displace the least senior employee out of current classification, for which the employee is qualified on current shift or another shift.
- If unable to obtain a classification under (1) or (2) above, the employee shall be offered any remaining classifications for open jobs on a seniority basis.

In the event of dispute arising with reference to the application of seniority rules, said dispute shall be adjusted between the Operations Management and the Union Steward. If no agreement can be reached, then the dispute shall be submitted for grievance.

E. Recall:

The Company shall have the right to determine the number of employees needed to perform the work available. For the purpose of recall from layoff of more than three (3) working days, employees will be recalled to work in order of their seniority. It is understood and agreed that in all cases of recall from layoff, the employee recalled must have the skills and qualifications to perform the work for which he/she is recalled in a satisfactory manner.

The Company in each instance determines the aforementioned ability to perform satisfactorily. The employee shall:

- Return to work in the usual manner and shall not lose his/her seniority for failure to return to work unless he/she has received notice by registered mail and failed to report to work within five (5) working days from the time of such notice is received.
- Have the right of refusal for the following condition: If an employee is laid off and secures temporary employment elsewhere and is called back to work and cannot be guaranteed employment for at least fifteen (15) days. Then, the employee has the right to continue the temporary employment elsewhere without losing his/her seniority rights and the next person on the seniority list can be called. This will not be allowed if there are no others on the list, then the Company will have the right to hire outside the organization, but the employee will still maintain their seniority.

In the event of dispute arising with reference to the application of seniority rules, said dispute shall be adjusted between the Operations Management, the Union Steward and the Business Representative of the Union. If no agreement can be reached, then the dispute shall be submitted for grievance.

7. Health & Welfare/Uniforms/Wages/Pension Plan:

A. Health & Welfare Benefits:

The Company agrees to provide the following health and welfare benefits insurance to employees electing coverage:

- Health insurance made available by the Company; cost shared.
- Dental insurance made available by the Company; cost shared.
- Term Life and AD&D; insurance made available by the Company; employee paid.
- Voluntary Supplemental Term Life and AD&D; insurance made available by the Company; employee paid.
- Long Term Disability insurance made available by the Company; employee paid.
- Short Term Disability insurance made available by the Company; employee paid.
- Flex Dependent Care Reimbursement Account made available by the Company; employee paid.
- Flex Medical Reimbursement Account made available by the Company; employee paid.
- Health Savings Account made available by the Company (if the employee has enrolled in a HDHP (High Deductible Health Plan), employee paid.
- Voluntary Accident, Critical Illness, Hospital Indemnity, and Vision policies made available by the Company; employee paid.

Employees will elect medical and dental based on individual requirements and choice. Term Life, AD&D;, Long-Term Disability and Short-Term Disability coverage will be dependent on employee's base wages. Currently:

- The Employees must purchase, at their own cost, through payroll deduction, Term Life with AD&D;, Long-Term Disability, and Short-Term Disability (STD) as provided by the Company.
- The Company agrees to share cost expenses of the Dental insurance by paying 50% of the cost, with the employee paying the remaining 50%.
- The Company agrees to share cost expenses of the Medical insurance by paying 85% of the cost for single coverage and 80% of the cost for all other tiers of coverage.
 - a. The Company will also impose a smoking (cigarettes, chewing tobacco and e-cigarettes) surcharge effective January 1, 2021 of \$50 per month for single coverage and \$100 per month for family coverage if the employee/spouse have smoked in the past twelve (12) months. If the employee/spouse provides documentation that they have completed a cessation plan and has been smoke-free for three (3) months, the surcharge will be removed. The smoking surcharge expires 12/31/25.
 - b. Effective 1/1/26 the Company will impose a \$150 spousal surcharge. If a spouse has access to their employer's coverage, they must take that or pay the spousal surcharge. If the spouse does not have access to their employer's coverage, no surcharge is applicable. Employees must complete a form attesting that no coverage is available.
 - c. Effective 4/1/25 the Company is adding a wellness incentive. If employees, and spouse if applicable, provide documentation that they have completed an annual physical and are up to date on the USPSTF recommended age/gender preventive screenings and exams, the Company will contribute to their HSA account a prorated amount up to \$600 (\$11.54/week) per year for single coverage and up to \$1,200 (\$23.08/week) per year for all other coverages.
- The Employees may purchase, at their own cost, through payroll deduction, Voluntary Supplemental Life Insurance, Accident, Critical Illness, Hospital Indemnity, and Vision insurance.

These benefits and means of providing them are subject to change at any time with the mutual consent of the Company and the Union. The Company will use its best efforts to retain the current level of benefits, at their

current level of cost sharing for the life of this Agreement. If benefits are changed, the Company will give the Union prompt notice of the change.

To be eligible for these benefits, employees must be regularly scheduled to work thirty-two (32) or more hours per week (thirty (30) for medical).

It is understood that the Exhibit B is merely a summary of the benefits and the actual benefits are as described in the Summary Plan Descriptions ("SPD's") provided by insurance company providers to the Union and employees. In the event of a conflict between Exhibit B and the SPD, the SPD will control.

B. Uniforms:

For your convenience, the Company may make uniform apparel available through an outside service. If you wish to participate in this service, please contact Human Resources to complete the necessary forms. You may be required to sign an authorization form for deduction of wages before you are allowed to participate. To participate you must agree that the Company may deduct any remaining debt from your final paycheck if you leave and fail to return all garments.

C. Wages:

The Company and the Union agree that the schedule setting forth job classification rates marked Exhibit C and corresponding job duties marked Exhibit D, hereby made a part of this Agreement, shall be binding upon each party during the term of this Agreement. The rates set out after each classification shall be the rates to be paid during the life of this Agreement. The Company may voluntarily pay higher wages to, or upgrade, any individual in a classification without necessitating a change in the wage of any other individual or classification. This higher pay may be reduced or rescinded at the discretion of the Company. The Company agrees to make available through ADP job duties, marked as Exhibit D, for corresponding job classifications listed in Exhibit C. The following additional "shift pay" will be added to each employee's hourly rate for working specific shifts:

- 1st shift = \$ 0.00 shift differential
- 2nd shift = \$1.25 shift differential (effective 4/1/23)
 - a. If working a flex shift, to be eligible for the 2nd shift premium, 70% of your shift hours must be during the 2nd shift core hours (your shift starts after 11:30 am)
- 3rd shift = \$ 1.00 shift differential plus (for working core hours totaling 36 hours) employee will receive 4 hours of Premium Pay)

The Company reserves the right to pay higher shift differentials if the Company in its discretion deems it necessary or appropriate.

D. Pension Plan:

Employee pension will be governed by the following rules:

1. The Company shall pay to Sheet Metal Workers Union Local 10 Pension Fund (under joint administration) 3% of Gross Wages for each employee commencing with the first day of employment of such employee (this shall start on wages and hours worked effective (10/01/06).
2. The Company shall pay to Sheet Metal Workers Union Local 10 Pension Fund (under joint administration) 3.5% of Gross Wages for each employee commencing with the first day of employment of such employee (this shall start on wages and hours worked effective (04/01/2022).
3. The Company shall pay to Sheet Metal Workers Union Local 10 Pension Fund (under joint administration) 4% of Gross Wages for each employee commencing with the first day of employment of such employee (this shall

start on wages and hours worked effective (04/01/2023).

4. The Company shall pay to Sheet Metal Workers Union Local 10 Pension Fund (under joint administration) 4.5% of Gross Wages for each employee commencing with the first day of employment of such employee (this shall start on wages and hours worked effective (04/01/2024)).

5. Part-time, Temporary, and Intermittent employees are eligible for this contribution after the probationary period has been satisfied. Contributions will be retroactive to their hire date.

6. Payments shall be due on the first day of each month and payable not later than the fifteenth day of said month. Contemporaneously with the payment of said amounts the Company shall submit a list showing the names and amounts paid for each employee. Said moneys shall be used for employees' retirement benefits and such other benefits as may be deemed proper by the Board of Trustees of said Pension Fund.

7. As such payments become due, they shall be deemed to be the sole property of said Pension Fund for the benefit of employees, and the Company shall be only the trustee and custodian of the amounts as they fall due until the Company actually remits the moneys due to the Trustees for said Pension Fund.

8. The Company will also allow employees to make voluntary contributions and 401(k) contributions to the Pension Plan under a payroll deduction plan. The Company and the Trustees of the Plan will mutually agree to the procedures of such plan.

8. Shop Rules/Health & Safety:

A. Shop Rules:

The employees agree to be bound by shop rules as may be agreed upon by Operations Management and the Union Steward, which do not conflict with any of the terms and conditions set forth in this Agreement. The Company will post shop rules in a conspicuous place in the plant or submit them to each employee in writing. Listed below are some of the basic shop rules:

1. Bulletin Boards:

The Company shall permit the Union to place a reasonable number of bulletin boards in its plant for the exclusive use of the Union. Bulletin boards are used and maintained to keep you informed of Company and employee information. Company information posted on bulletin boards typically will include job postings; management communication to employees and notices of Company recognized employee activities and Union communications. If you have any questions about a posting, please ask Operations Management, Human Resources or the Company President. The Company reserves the right to approve, remove and discard all non-union postings.

2. Use of Company Property:

In the course of your employment with the Company an employee will be provided with various Company property and equipment. The employee is responsible for assuring that they obtain the necessary information to know how to properly use such equipment and property, and for complying with Company policies regarding equipment use.

Each member will be trained and responsible for the daily maintenance of their machine or tools and do their part in keeping their area and the common areas (aisles, lunchroom and parking lot) clean and organized.

The equipment is provided to you because you need it to do your job. It is to be used primarily for business purposes, unless you have obtained specific authorization from your supervisor/manager to use Company equipment for personal purposes. The Company telephone system is not to be used for personal long-distance calls nor is the postage machine to be used for personal mailings.

3. Purchase of Equipment/Materials/Services:

If you have been employed for one (1) year AND your current position requires that you purchase specific tools, equipment, services or supplies, the Company may provide the convenience of payroll deduction (no cash, credit cards or personal checks will be accepted) for these purchases if the total purchase exceeds \$250. If the purchase request exceeds \$1,000, you will be required to pre-pay the first \$500 before the purchase will be approved. For more information, or to obtain the necessary forms, please see your supervisor/manager. All purchases require advance approval from your supervisor/manager. Abuse of this service may result in discipline up to and including termination of employment. In the event of an employee's termination of employment, any outstanding balance will be collected from his/her final paycheck. If after three (3) months a terminated employee has not collected their personal property, and the Company has made a reasonable effort to contact the employee, the personal property will belong to the Company.

B. Health & Safety:

The health and safety of each employee is of primary importance. The Company has established our safety and health program to eliminate work injuries to employees. Safety is the responsibility of both the employees and management of the Company.

The Company also believes that it is important to employees' families that the Company provides a safe and healthy work environment.

To the greatest extent possible, the Company will provide equipment, safeguards, personal protective equipment, training, and administrative measures to ensure employee safety and health. Safety glasses are required in all areas of the shop at all times and are provided by the Company. If an employee or customer wears prescription glasses, the Company will provide safety glasses that go over the existing glasses. Hearing protection is required in the Paint Shop, Grinding areas and the Flat Cell at all times.

Our employees will be trained to work safely and will be required to comply with all health and safety rules. Failure to follow safety policies/instructions and do your job in a safe manner will be cause for disciplinary action, including termination.

1. Accidents/Injuries:

You, and every other employee, play an important role in the prevention of injuries and accidents. A very simple, but large part you can continue to play involves following the rules and policies for your work area. Employees are to help prevent injuries and accidents by working safely and following safety rules. If you see any employee acting in an unsafe manner or working in an unsafe situation, please report it to Operations Management, Human Resources, any member of the Safety Committee or the Company President.

All accidents or injuries are to be reported immediately to your Operations Management or Human Resources. Failure to immediately report an accident or injury may result in disciplinary action. Accidents and injuries need to be reported immediately for several reasons:

- So a determination can be made if medical attention is needed,
- So the cause of the accident or injury can be investigated,
- So reports can be initiated, such as the "Supervisor's Report of Injury" and the "First Report of Injury" and filed with the insurance company.

Employees losing time from work due to a work-related injury are entitled to Worker's Compensation benefits. These benefits include payment for time lost from work, for medical attention, and for prescribed physical therapy. If an employee loses time from work due to a work-related injury and the leave qualifies for FMLA, the leaves will run concurrently.

As a general rule, the Company will pay an injured employee's wages the first day for time lost due to the injury. After the first day, payments for time missed from work are processed and handled by our Worker's Compensation administrator. By law, the payments are about 2/3 of the employee's normal wage rate. The Company offers light duty work for anyone injured on the job.

For employees who miss time from work due to a non-work-related injury, they will be required to present a release from their doctor stating they are able to meet the physical requirements of their position before they will be allowed to return to work. If an employee is unsure of the physical requirements of their position, they should contact Human Resources to obtain a copy of their job description. If an employee has restrictions from a non-work-related injury, they will not be allowed to return until they are cleared to perform their duties without restrictions and should file for short term disability if appropriate.

Agreement Signature Page

THIS AGREEMENT shall be effective April 1, 2025 and remain in effect until March 31, 2027 and shall thereafter be continued from year to year unless written notice is given sixty (60) days prior to the expiration date by either party to the other that a new agreement is desired, together with a copy of such proposed new agreement.

In the event such notice is given, and the parties have not agreed to a new or amended agreement upon the terminal date of this agreement, this agreement nevertheless shall continue to be binding upon both parties here signed.

It is further agreed, however, that if such negotiations continue for an unreasonable length of time, either party may then terminate this agreement at any time upon ten (10) days written notice to the other party.

IN WITNESS WHEREOF, the parties hereto have affixed their signatures.

ATLAS MANUFACTURING	INTERNATIONAL ASSOCIATION OF SHEET METAL, AIR, RAIL AND TRANSPORTATION WORKERS LOCAL 10
Brett Bohlander _____	Ben Semlak – Representative of Local #10 _____
Mike Fium _____	Joel Rasmussen – Business Representative _____
Shelly Paulsrud _____	Matt Gilberg (Union Steward) _____
	Jeremiah Jarchow _____
	RJ Jerde _____

EXHIBIT A

Internal Job Posting

POSITION: _____

(Reporting to _____)

Atlas has an opening for a _____. Please reference the job description in the union contract for qualifications.

If you are interested in this position, please sign your employee number and name below. Questions about this position can be directed to the Operations Management.

Empl. Number	Employee Name (Please Print)

Posted By: _____ Date: _____

EXHIBIT B

MERIBEL ENTERPRISES, LLC
Your Employee Benefits

This Employee Benefit Summary has been prepared to give you an overview of the benefits offered by Meribel Enterprises, LLC. For a full description of these benefits, refer to detailed information already furnished by, or available from, the Human Resources Department.

These benefits are available to all eligible full-time regular employees working 30 hours or more per week for medical and 32 hours or more per week for all others. Part-time employees should consult with Human Resources to see which benefits, if any, are available.

	Health Insurance	Dental Insurance	Term Life and AD&D Insurance	Long Term Disability Insurance
Effective Date	91st day of employment	First of the month after 90 days of employment	First of the month after 90 days of employment	First of the month after 90 days of employment
Insurance Company or Sponsor	Meribel Enterprises, LLC	Delta Dental	Mutual of Omaha	Mutual of Omaha

Summary of Coverage	In-network, Plan pays: DEDUCTIBLES: \$3,500 per member \$7,000 per family CO-INSURANCE: 30% after deductible is satisfied until the out of pocket is satisfied MAX OUT-OF-POCKET: \$7,000 per member \$10,000 per family 100% of preventive care received in the physician's office or hospital. NOT SUBJECT TO THE DEDUCTIBLE RX: Subject to the deductible Please refer to the plan specific benefit summary for more details United HealthCare Choice Plus Network TPA: UMR	Delta Preferred Option (smaller provider network) In – network: \$0 deductible Out-of-network: \$25 annual ded. per person, \$75 max. per family. In network: 100% covg. for preventive & diagnostic services & oral surgery – simple extractions. In-network: 90% covg. for basic restorative services (fillings, sealants) In-network: 80% covg. for; oral surgery – surgical extractions, endodontics & periodontics. Out-of-network: 80% covg. for preventive & diagnostic services (no Ded.), & oral surgery – surgical extractions. In-network and Out-of-network the following services are covd at 50%; crown & crown repairs, bridges & dentures. These add'l out-of-network services are covered at 50%, basic restorative (fillings, sealants), oral surgery- simple extractions, endodontics & periodontics The annual maximum is \$2,000 Orthodontics covered at 50% to a lifetime maximum of \$1,000 (For dependent children ages 8 to 19) The choice is made annually between the two dental plans and can only change during open enrollment. Select Plus (larger provider network) In-network \$25 annual deductible per person, \$75 max. per family. The deductible is waived; then 100% coverage for preventive & diagnostic services. 80% coverage (after the deductible) for; Basic restorative (fillings, sealants), oral surgery – simple extractions and surgical extractions. 50% coverage (after the deductible) for; endodontics, periodontics, crown and crown repairs, bridges, and dentures The annual maximum is \$1,000 There are NO out of network benefits with Select Plus	One times annual salary up to \$50,000 is provided to all eligible employees. Accidental death & dismemberment (AD&D;) pays double the value of the life insurance policy if the death is due to an accident. Dismemberment benefits (e.g., losing an arm or leg) are provided as a percentage of the life benefit and vary according to a pre-determined schedule	In the case of a disability, the employee receives 60% of monthly salary up to \$6,000 per month. Benefit is received after 180 days.
	Cost Shared	Cost Shared	Employee Paid	Employee Paid

Summary Effective Date: April 1, 2025

Please be aware that changes in benefits will occur from time to time. While this document will be revised and reissued periodically, it may not be up to date at any given time. Therefore, always check with Human Resources if you have any questions regarding benefits.

Short Term Disability	Flex Medical & Dependent Care Reimbursement Accounts	Holidays	Vacation	ESST	Pension & 401(k) Retirement Plan
First of the month after 90 days of employment	First of the month after 90 days of employment	91st day of employment.	91st day of employment	First day of employment	Pension: Date of Hire 401(k): Beginning of month following probationary period
Mutual of Omaha	Optum	Meribel Enterprises, LLC	Meribel Enterprises, LLC	Meribel Enterprises, LLC	Alerus Financial

Benefits are paid at 60% of base salary to a maximum of \$1,000 per week. Benefits begin on the 1st day of an accident, the 8th day of an illness and all illness and continue for a maximum of 26 weeks.	Set aside up to \$3,200 per year to pay for eligible medical expenses on a pre-tax basis. Set aside up to \$5,000 per year to pay for eligible dependent day care expenses on a pre-tax basis.	All full-time employees shall receive holiday pay (8 hours) at their regular hourly rate for observances of the following holidays: New Year's Day Memorial Day Independence Day Labor Day Thanksgiving Day Friday after Thanksgiving Christmas Eve Day Christmas Day New Year's Eve Day Floating Holiday	Meribel Enterprises provides paid time off to employees for vacation/recreation, personal business or to protect your income in case you miss work. The maximum balance you may have at any time is two (2) times your annual accrual amount. If at any time your balance reaches the maximum, your accrual will stop until your balance falls below the maximum. You will forfeit any amount that would have normally accrued. Meribel Enterprises will not compensate you for unused Vacation. Year 1, 40 hours: Accrue .77 hrs/week Years 2-5, 80 hours: Accrue 1.54 hrs/week Years 6-10, 120 hours: Accrue 2.31 hrs/week Years 11-19, 160 hours: Accrue 3.08 hrs/week Years 20+, 200 hours: Accrue 3.85 hrs/week	Meribel Enterprises provides 1 hour of ESST for every 30 hours worked up to a maximum of 48 hours each calendar year. The maximum balance that can be carried over each calendar year is 80 hours. ESST hours are not paid out when employment ends.	Pension: 4.5% of gross earnings are contributed weekly to each individual's account. 401(k): Employees may also contribute to their retirement by participating in the 401(k) savings plan. All contributions and income on the savings are currently on a tax deferred basis.
Employee Paid	Employee Paid	Company Paid	Company Paid	Company Paid	Company Paid Employee Contribution

In addition to the benefits that are explained above, Meribel Enterprises, LLC also provides other benefits you may not have considered as part of your benefit program. These include:

- Funeral Leave
- Family Medical Leave
- Military Leave
- Jury Duty Leave
- Payroll Savings
- Tuition Reimbursement
- Employee Assistance Program
- Length of Service Awards

Note:

- All benefits are subject to the Plans and their Administrative Manuals, or to the Contracts or Policies. These will be the controlling documents in the event a discrepancy exists between this summary and the actual Plan or Administrative Manual.
- Factors beyond our control affect our business. Economic conditions and other business needs may cause Meribel Enterprises, LLC to make adjustments in our benefits or employment levels. Consequently, all employment is at the will of the Company based on its needs, and Meribel Enterprises, LLC reserves the right to change these benefits or conditions of employment at any time without notice. Meribel Enterprises, LLC does not make nor imply any guarantee of permanent employment, nor of the availability of these or other benefits for its employees.

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EXHIBIT C

Union Wage Scale

Classification	Level	Current Rate	3.50% 04/01/25	3.00% 4/1/2026
Sheet Metal Fabricator I	Advanced	20.09	20.79	21.42
	Experienced	19.50	20.18	20.79
	Apprentice	18.94	19.60	20.19
Material Handler		21.58	22.34	23.01
Sheet Metal Fabricator II	Advanced	22.93	23.73	24.44
	Experienced	21.84	22.60	23.28
	Apprentice	20.80	21.53	22.17
Grinder	Advanced	24.65	25.51	26.28
	Experienced	23.68	24.51	25.24
	Apprentice	22.31	23.09	23.78
Sheet Metal Fabricator III (New 4/1/25)	Advanced	-	25.54	26.31
	Experienced	-	24.80	25.54
	Apprentice	-	24.08	24.80
Truck Driver		25.13	26.01	26.79
Shipping/Receiving Coordinator		23.77	26.15	26.93
Painter	Advanced	27.31	28.27	29.11
	Experienced	24.51	25.37	26.13
	Intermediate	22.21	22.99	23.68
	Apprentice	20.05	20.75	21.37
Assembler	Advanced	27.98	28.96	29.83
	Experienced	26.65	27.58	28.41
	Intermediate	25.38	26.27	27.06
	Apprentice	24.17	25.02	25.77
Laser	Master	29.99	31.04	31.97
	Advanced	28.57	29.57	30.46

	Experienced	27.20	28.15	29.00
	Intermediate	25.85	26.75	27.56
	Apprentice	24.68	25.54	26.31
Sheet Metal Mechanic		31.23	32.32	33.29
Welder	Master	31.36	32.46	33.43
	Advanced	29.17	30.19	31.10
	Experienced	28.02	29.00	29.87
	Intermediate	26.20	27.12	27.93
	Apprentice	25.18	26.06	26.84
Press Brake	Master	32.60	33.74	34.75
	Advanced	31.77	32.88	33.87
	Experienced	27.44	28.40	29.25
	Intermediate	26.14	27.05	27.87
	Apprentice	24.91	25.78	26.56
	Trainee	23.09	23.90	24.62
Punch	Master	31.72	34.74	35.79
	Advanced	29.37	30.40	31.31
	Experienced	28.11	29.09	29.97
	Intermediate	26.94	27.88	28.72
	Apprentice	25.90	26.81	27.61
Maintenance Mechanic	Advanced	34.12	35.31	36.37
	Experienced	32.49	33.63	34.64
	Intermediate	30.95	32.03	32.99
	Apprentice	29.47	30.50	31.42
	Trainee	28.07	29.05	29.92

C-1 / C-2